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STATE OF RHODE ISLAND

IN GENERAL ASSEMBLY

JANUARY SESSION, A.D. 2026

A N A C T

RELATING TO EDUCATION -- HEALTH AND SAFETY OF PUPILS -- STUDENT AND
TEACHER CLASSROOM SAFETY

Introduced By: Senators Thompson, LaMountain, Bissaillon, Urso, Patalano, Murray,
and Appollonio

Date Introduced: February 13, 2026

Referred To: Senate Education

It is enacted by the General Assembly as follows:

- 1 SECTION 1. Chapter 16-21 of the General Laws entitled "Health and Safety of Pupils" is
2 hereby amended by adding thereto the following section:
- 3 **16-21-44. Student and teacher classroom safety.**
- 4 (a) Definitions. For purposes of this section:
- 5 (1) "Disruptive behavior" means behavior that materially and substantially interferes with
6 a teacher's ability to supervise, instruct, or maintain order in the classroom, or that impedes other
7 students' ability to engage in focused, rigorous classroom learning.
- 8 (2) "Chronically disruptive student" means a student who engages in conduct that is so
9 unruly, abusive, or disruptive that it severely impairs the classroom learning environment or
10 threatens the educational opportunity of other students, and who has engaged in such disruptive
11 behavior on three (3) or more documented occasions during a school term.
- 12 (3) "Removal" means the transfer of a student from the classroom by a teacher or other
13 instructional staff member, due to behavior that meets the criteria in subsection (b) of this section,
14 to the principal's office or an alternative instructional setting where the student continues to receive
15 educational services and appropriate behavioral support, consistent with this section.
- 16 (4) "Return-to-classroom plan" means a written plan developed by the school principal or
17 designee, with input from the relevant classroom teacher and other appropriate school personnel,
18 to support the student's safe and productive return to the classroom environment.

1 (5) “Immediate threat” means behavior that poses an imminent danger to the safety of
2 students or staff within the classroom.

3 (b) Authority to remove a student from the classroom.

4 (1) A teacher may initiate the removal of a student from the classroom if the student:
5 (i) Is chronically disruptive despite documented interventions; or
6 (ii) Commits an act that poses an immediate threat to the physical safety of others in the
7 classroom.

8 (2) Teachers shall not remove students for minor, non-disruptive behavior, such as
9 tardiness or minor classroom rule violations. Student removals shall be consistent with the school
10 district’s student discipline code, as required by § 16-21-21.

11 (3) The teacher shall document the removal using the school district’s existing procedures
12 or reporting platform and shall notify the principal or designee by the end of the school day.

13 (c) Administrative response.

14 (1) The principal or designee shall review the incident within one school day and notify
15 the student’s parent or guardian within twenty-four (24) hours.

16 (2) The student shall not return to the classroom from which the student was removed until:
17 (i) A return-to-classroom plan is developed by the principal or designee addressing
18 behavior expectations and support strategies; and
19 (ii) The classroom teacher is consulted.

20 (3) If the teacher objects to the student’s return to classroom plan, the principal shall
21 convene a review committee consisting of:
22 (i) One school administrator;
23 (ii) One certified teacher not involved in the incident; and
24 (iii) One counselor, behavior specialist, or school psychologist.

25 (4) The committee shall determine whether the student shall return to the classroom or be
26 placed in an alternative instructional setting and shall document the committee's findings.

27 (d) Student protections.

28 (1) If the removal results in suspension from school, the provisions of § 16-2-17 shall apply.
29 (2) Students with disabilities shall be afforded all rights and protections required under the
30 Individuals with Disabilities Education Act (IDEA) 20 U.S.C. § 1400 et seq., and § 504 of the
31 Rehabilitation Act of 1973, 29 U.S.C. § 701 and all applicable state special education regulations.

32 (e) School district responsibilities.

33 (1) Each school district shall adopt policies consistent with this section no later than
34 October 1, 2026.

1 (2) Each district shall report annually to the department of elementary and secondary
2 education (RIDE):
3 (i) The number of classroom removals to the principal’s office, alternative instructional
4 placements, return-to-classroom plans; and
5 (ii) Data disaggregated by race, gender, grade level, and disability status.
6 (f) Protections for educators and staff.
7 (1) A teacher or school employee acting in good faith and in accordance with this section
8 shall not be subject to disciplinary action or retaliation.
9 (2) Nothing herein shall supersede any right conferred under an applicable collective
10 bargaining agreement.
11 SECTION 2. This act shall take effect upon passage.

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EXPLANATION
BY THE LEGISLATIVE COUNCIL
OF
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RELATING TO EDUCATION -- HEALTH AND SAFETY OF PUPILS -- STUDENT AND
TEACHER CLASSROOM SAFETY

- 1 This act would establish provisions for student and teacher classroom safety, and provides
2 for the authority to remove students from classrooms and the administrative response to the same.
3 This act would provide for student and educator protections from said removals and the school
4 district's responsibilities to the safety of the student.
5 This act would take effect upon passage.

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